

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1720
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 25-403, Arizona Revised Statutes, is amended to
3 read:

4 25-403. Legal decision-making; best interests of child

5 A. The court shall determine legal decision-making ~~and parenting~~
6 ~~time~~, either originally or on petition for modification, in accordance
7 with the best interests of the child. The court shall consider all
8 factors that are relevant to the child's physical and emotional
9 well-being, including:

10 1. The past, present and potential future relationship between the
11 parent and the child.

12 2. The interaction and interrelationship of the child with the
13 child's parent or parents, the child's siblings and any other person who
14 may significantly affect the child's best ~~interest~~ INTERESTS.

15 3. The child's adjustment to home, school and community.

16 4. If the child is of suitable age and maturity, the wishes of the
17 child as to legal decision-making ~~and parenting time~~.

18 5. The mental and physical health of all individuals involved.

19 6. Which parent is more likely to allow the child frequent,
20 meaningful and continuing contact with the other parent. This paragraph
21 does not apply if the court determines that a parent is acting in good
22 faith to protect the child from witnessing an act of domestic violence or
23 being a victim of domestic violence or child abuse.

24 7. Whether one parent intentionally misled the court to cause an
25 unnecessary delay, to increase the cost of litigation or to persuade the
26 court to give a legal decision-making ~~or a parenting time~~ preference to
27 that parent.

1 8. Whether there has been domestic violence or child abuse pursuant
2 to section 25-403.03.

3 9. The nature and extent of coercion or duress used by a parent in
4 obtaining an agreement regarding legal decision-making ~~or parenting time~~.

5 10. Whether a parent has complied with chapter 3, article 5 of this
6 title.

7 11. Whether either parent was convicted of an act of false
8 reporting of child abuse or neglect under section 13-2907.02.

9 12. **THE CHILD'S AGE, NEEDS AND EXISTING PARENTAL BONDS.**

10 B. In a contested legal decision-making ~~or parenting time~~ case, the
11 court shall make specific findings on the record about all relevant
12 factors and the reasons for which the decision is in the best interests of
13 the child.

14 Sec. 2. Section 25-403.01, Arizona Revised Statutes, is amended to
15 read:

16 25-403.01. Sole and joint legal decision-making and parenting
17 time

18 A. In awarding legal decision-making, the court may order sole
19 legal decision-making or joint legal decision-making.

20 B. In determining the level of **LEGAL** decision-making that is in the
21 child's best interests, the court shall consider the factors prescribed in
22 section 25-403, subsection A and all of the following:

23 1. The agreement or lack of an agreement by the parents regarding
24 joint legal decision-making.

25 2. Whether a parent's lack of an agreement is unreasonable or is
26 influenced by an issue not related to the child's best interests.

27 3. The past, present and future abilities of the parents to
28 cooperate in **LEGAL** decision-making about the child to the extent required
29 by the order of joint legal decision-making.

30 4. Whether the joint legal decision-making arrangement is
31 logistically possible.

32 C. An order for sole legal decision-making does not allow the
33 parent designated as sole legal decision-maker to alter unilaterally a
34 court-ordered parenting time plan.

35 D. A parent who is not granted sole **LEGAL DECISION-MAKING** or joint
36 legal decision-making is entitled to ~~reasonable~~ parenting time **PURSUANT TO**
37 **SECTION 25-403.11** to ensure that the minor child has substantial,
38 frequent, meaningful and continuing contact with the parent unless the
39 court finds, after a hearing, that parenting time would endanger the
40 child's physical, mental, moral or emotional health.

41 Sec. 3. Section 25-403.02, Arizona Revised Statutes, is amended to
42 read:

43 25-403.02. Parenting plans

44 A. If the child's parents cannot agree on a plan for legal
45 decision-making or parenting time, each parent must submit a proposed
46 parenting plan.

1 B. Consistent with the child's best interests ~~AS PRESCRIBED~~ in
2 ~~section~~ SECTIONS 25-403 AND 25-403.11 and sections 25-403.03, 25-403.04
3 and 25-403.05, the court shall adopt a parenting plan that provides for
4 both parents to share legal decision-making regarding their child and that
5 maximizes their respective parenting time. The court shall not prefer a
6 parent's proposed plan because of the parent's or child's gender.

7 C. Parenting plans shall include at least the following:

8 1. A designation of the legal decision-making as joint or sole as
9 defined in section 25-401.

10 2. A description of each parent's rights and responsibilities for
11 the personal care of the child and for decisions in areas such as
12 education, health care and religious training.

13 3. A practical schedule of parenting time for the child, including
14 holidays and school vacations.

15 4. A procedure for the exchanges of the child, including location
16 and responsibility for transportation. The parenting plan must specify
17 ~~when~~ WHETHER the exchange is required to take place at a safe exchange
18 location pursuant to section 25-403.10.

19 5. A procedure by which proposed changes, relocation of where a
20 child resides with either parent pursuant to section 25-408, disputes and
21 alleged breaches may be mediated or resolved, which may include the use of
22 conciliation services or private counseling.

23 6. A procedure for periodic review of the PARENTING plan's terms by
24 the parents.

25 7. A procedure for parents to communicate with each other about the
26 child, including methods and frequency.

27 8. A statement that each party has read, understands and will abide
28 by the notification requirements of section 25-403.05, subsection B.

29 D. If the parents are unable to agree on any element to be included
30 in a parenting plan, the court shall determine that element. The court
31 may determine other factors that are necessary to promote and protect the
32 emotional and physical health of the child.

33 E. Shared legal decision-making does not necessarily mean equal
34 parenting time.

35 Sec. 4. Title 25, chapter 4, article 1, Arizona Revised Statutes,
36 is amended by adding section 25-403.11, to read:

37 25-403.11. Parenting time; equal time; best interests of
38 child; definition

39 A. IN ANY PARENTING TIME PROCEEDING, THE COURT SHALL PRESUME THAT
40 AN AWARD OF EQUAL PARENTING TIME IS IN THE BEST INTERESTS OF THE CHILD IF
41 BOTH OF THE FOLLOWING APPLY:

42 1. BOTH PARENTS ARE DETERMINED BY THE COURT TO BE FIT, WILLING AND
43 ABLE TO SHARE EQUAL PARENTING TIME.

44 2. BOTH PARENTS RESIDE WITHIN TWENTY-FIVE MILES OF THE CHILD'S
45 SCHOOL OR OTHER EDUCATIONAL SETTING.

46 B. THE PRESUMPTION THAT EQUAL PARENTING TIME IS IN THE BEST
47 INTERESTS OF THE CHILD MAY BE REBUTTED BY ~~[CLEAR AND CONVINCING]~~ [A

1 PREPONDERANCE OF THE] EVIDENCE. IF THE COURT ENTERS A PARENTING TIME
2 AWARD THAT DOES NOT INCLUDE EQUAL PARENTING TIME, THE COURT SHALL MAKE
3 SPECIFIC FINDINGS ON THE RECORD ABOUT ALL RELEVANT FACTORS AND THE REASONS
4 FOR WHICH AN AWARD OF EQUAL PARENTING TIME IS NOT IN THE BEST INTERESTS OF
5 THE CHILD. IN DETERMINING THAT AN AWARD OF EQUAL PARENTING TIME IS NOT IN
6 THE BEST INTERESTS OF THE CHILD, THE COURT MAY CONSIDER THE FOLLOWING
7 FACTORS:

8 1. WHETHER THERE HAS BEEN DOMESTIC VIOLENCE OR CHILD ABUSE BY
9 EITHER PARENT.

10 2. WHETHER THERE HAS BEEN ONGOING ABUSE OF DRUGS OR ALCOHOL BY
11 EITHER PARENT.

12 3. THE MENTAL HEALTH OF BOTH PARENTS.

13 4. THE GEOGRAPHIC LOCATION OF BOTH PARENTS.

14 5. WHETHER THERE HAS BEEN INTERFERENCE BY ONE PARENT WITH THE OTHER
15 PARENT'S RELATIONSHIP WITH THE CHILD.

16 6. THE PROVISIONS OF SECTION 25-403.05.

17 C. FOR THE PURPOSES OF THIS SECTION, "EQUAL PARENTING TIME" MEANS
18 THAT EACH PARENT IS AWARDED AT LEAST FORTY-FIVE PERCENT OF OVERNIGHT
19 VISITS WITH THE CHILD ANNUALLY, ALLOWING FOR ADJUSTMENTS FOR HOLIDAYS, THE
20 CHILD'S SCHOOL SCHEDULE AND THE PARENT'S EMPLOYMENT.

21 Sec. 5. Section 25-404, Arizona Revised Statutes, is amended to
22 read:

23 25-404. Temporary orders

24 A. A party to a legal decision-making and parenting time proceeding
25 may move for a temporary order. This motion must be supported by
26 pleadings as provided in section 25-411. The court may award temporary
27 legal decision-making and parenting time under the standards of ~~section~~
28 SECTIONS 25-403 AND 25-403.11 after a hearing, or, if there is no
29 objection, solely on the basis of the pleadings.

30 B. If a proceeding for dissolution of marriage or legal separation
31 is dismissed, any temporary legal decision-making or parenting time order
32 is vacated unless a parent or the child's custodian moves that the
33 proceeding continue as a legal decision-making or parenting time
34 proceeding and the court finds, after a hearing, that the circumstances of
35 the parents and the best interest of the child require that a legal
36 decision-making or parenting time plan decree be issued.

37 C. If a legal decision-making or parenting time proceeding
38 commenced in the absence of a petition for dissolution of marriage or
39 legal separation is dismissed, any temporary ~~custody~~ LEGAL DECISION-MAKING
40 OR PARENTING TIME order thereby is vacated.

41 Sec. 6. Section 25-408, Arizona Revised Statutes, is amended to
42 read:

43 25-408. Rights of each parent; parenting time; relocation of
44 child; exception; attorney fees; costs; access to
45 prescription medication and records

46 A. If by written agreement or court order both parents are entitled
47 to joint legal decision-making or parenting time and both parents reside

1 in ~~the~~ THIS state, at least forty-five days' advance written notice shall
2 be provided to the other parent before a parent may do either of the
3 following:

4 1. Relocate the child outside ~~the~~ THIS state.

5 2. Relocate the child more than one hundred miles within ~~the~~ THIS
6 state.

7 B. The notice required by this section shall be made by certified
8 mail, return receipt requested, or pursuant to the Arizona rules of family
9 law procedure. The court shall sanction a parent who, without good cause,
10 does not comply with the notification requirements of this subsection.
11 The court may impose a sanction that will affect legal decision-making or
12 parenting time only in accordance with the child's best interests.

13 C. Within thirty days after notice is made, the nonmoving parent
14 may petition the court to prevent relocation of the child. After
15 expiration of this time, any petition or other application to prevent
16 relocation of the child may be granted only on a showing of good cause.
17 This subsection does not prohibit a parent who is seeking to relocate the
18 child from petitioning the court for a hearing, on notice to the other
19 parent, to determine the appropriateness of a relocation that may
20 adversely affect the other parent's legal decision-making or parenting
21 time rights.

22 D. Subsection A of this section does not apply if provision for
23 relocation of a child has been made by a court order or a written
24 agreement of the parties that is dated within one year of the proposed
25 relocation of the child.

26 E. If a child is relocated pursuant to this section, unless
27 otherwise ordered by the court, all parties must continue to comply with
28 current court orders, regardless of distance moved or notice required.

29 F. Pending the determination by the court of a petition or
30 application to prevent relocation of the child:

31 1. A parent with sole legal decision-making or a parent with joint
32 legal decision-making and primary residence of a child who is required by
33 circumstances of health, safety, employment or eviction of that parent or
34 that parent's spouse to relocate in less than forty-five days after
35 written notice has been given to the other parent may temporarily relocate
36 with the child.

37 2. A parent who shares joint legal decision-making and
38 substantially equal parenting time and who is required by circumstances of
39 health, safety, employment or eviction of that parent or that parent's
40 spouse to relocate in less than forty-five days after written notice has
41 been given to the other parent may temporarily relocate with the child
42 only if both parents execute a written agreement to ~~permit~~ ALLOW
43 relocation of the child.

44 G. The court shall determine whether to allow the parent to
45 relocate the child in accordance with the child's best interests. The
46 burden of proving what is in the child's best interests is on the parent
47 who is seeking to relocate the child. To the extent practicable the court

1 shall also make appropriate arrangements to ensure the continuation of a
2 meaningful relationship between the child and both parents.

3 H. The court shall not deviate from a provision of any parenting
4 plan or other written agreement by which the parents specifically have
5 agreed to allow or prohibit relocation of the child unless the court finds
6 that the provision is no longer in the child's best interests. There is a
7 rebuttable presumption that a provision from any parenting plan or other
8 written agreement is in the child's best interests.

9 I. In determining the child's best interests, the court shall
10 consider all relevant factors, including:

11 1. The factors prescribed ~~under section~~ IN SECTIONS 25-403 AND
12 25-403.11.

13 2. Whether the relocation is being made or opposed in good faith
14 and not to interfere with or to frustrate the relationship between the
15 child and the other parent or the other parent's right of access to the
16 child.

17 3. The prospective advantage of the move for improving the general
18 quality of life for the custodial parent or for the child.

19 4. The likelihood that the parent with whom the child will reside
20 after the relocation will comply with parenting time orders.

21 5. Whether the relocation will allow a realistic opportunity for
22 parenting time with each parent.

23 6. The extent to which moving or not moving will affect the
24 emotional, physical or developmental needs of the child.

25 7. The motives of the parents and the validity of the reasons given
26 for moving or opposing the move, including the extent to which either
27 parent may intend to gain a financial advantage regarding continuing child
28 support obligations.

29 8. The potential effect of relocation on the child's stability.

30 J. The court shall assess attorney fees and court costs against
31 either parent if the court finds that the parent has unreasonably denied,
32 restricted or interfered with court-ordered parenting time.

33 K. Pursuant to section 25-403.06, each parent is entitled to have
34 access to prescription medication, documents and other information about
35 the child unless the court finds that access would ~~endanger~~
36 ENDANGER the child's or a parent's physical, mental, moral or emotional
37 health.

38 Sec. 7. Legislative findings

39 The legislature finds:

40 1. That the public policy of this state is to promote the best
41 interests of the child by encouraging frequent, meaningful and continuing
42 contact with both parents following a legal separation or dissolution of
43 marriage.

44 2. That children benefit emotionally, academically and
45 developmentally when both parents are significantly involved in the
46 child's life.

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1 3. That equal parenting time reduces conflict, fosters stability
2 and safeguards the fundamental rights of both the child and the child's
3 parents.

4 4. That a rebuttable presumption that equal parenting is in the
5 best interests of the child reduces unnecessary litigation and protects
6 children from adversarial custody disputes.

7 Sec. 8. Short title

8 This act may be cited as the "Arizona Equal Shared Parenting Act".

9 Enroll and engross to conform

10 Amend title to conform

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